

25STCV16604 25STCV16604

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C06%2F30%2F2026

Source SHA-256: cc8da0cd519b19f218aac561b269d0e48d2992c1dd66f29534cdf71c1a2617cd

Case Number: 25STCV16604 Hearing Date: June 30, 2026 Dept: 529

DEAN D CARSON vs GENERAL MOTORS, LLC

defendant general motors llc's motion for compliance
pursuant to ccp § 871.26 and request for sanctions

Date

of Hearing: June 30, 2026 Trial

Date: None

set

Department: 529 Case No.: 25STCV16604

Moving

Party: Defendant General Motors
LLC

Responding

Party: Plaintiff Deann D Carson

BACKGROUND

This is a lemon law action. On June 9, 2025, Plaintiff Deann D Carson filed a complaint against General Motors LLC. On November 24, 2025, Plaintiff filed a First Amended Complaint for various violations of the Song-Beverly Consumer Warranty Act and Fraudulent Inducement – Concealment.

[Tentative] Ruling

Defendant

General Motors LLC's Motion for Compliance Pursuant to CCP §871.26 and Request for Sanctions is GRANTED IN PART.

discussion

Defendant

General Motors LLC ("GM") moves this court for an order for compliance requiring Plaintiff Deann D Carson to provide the complete production of documents and written disclosure of information required under Code of Civil Procedure section 871.26(b) and (f). GM also moves this court for an order imposing monetary sanctions against Plaintiff's attorneys of record, Strategic Legal Practices, APC, in the sum of \$1,500.00. GM makes the motion on the grounds Plaintiff's counsel has made clear on multiple occasions they will not produce the required materials.

Under

Code of Civil Procedure section 871.26(b), all parties are required to provide enumerated documents within 60 days of filing an Answer or responsive pleading to Plaintiff's Complaint.

Defendant

GM argues on June 9, 2025, Plaintiff filed suit against GM alleging violations of the Song-Beverly Consumer Warranty Act, breach of warranties, and fraud relating to a 2018 Chevrolet Cruze that Plaintiff purchased. (Lasater Decl. ¶2.) On September 19, 2025, GM filed its responsive pleading in the form of its demurrer to the complaint. (Lasater Decl. ¶3.) Accordingly, Plaintiff's deadline to produce documents in this matter was November 13, 2025. (Lasater Decl. ¶5.) However, Plaintiff has not produced the sales contract and repair orders. (Lasater Decl. ¶6.) Without Plaintiff's repair orders and sales contract, GM is unable to adequately prepare for the Code-mandated mediation that is to occur 150 days after GM filed its responsive pleading under Code of Civil Procedure section 871.26.

In

opposition, Plaintiff argues the motion is moot because as of September 19, 2025, Plaintiff produced and served Defendant with initial disclosures. Plaintiff claims it provided all documents within Plaintiff's possession and Plaintiff contends that Defendant could obtain this information from

Defendant's own records. Accordingly, GM cannot show noncompliance warranting sanctions.

Defendant

persuasively argues that it has not received a single document from plaintiff. The court finds that based

on the record before it, plaintiff has not complied with Section 871.26. Plaintiff is ordered to provide all of the required documents within 30 days.

Moreover, the court finds Plaintiff has not established good cause for failing to timely produce these documents. Plaintiff's contention that GM could obtain this information through their own records is inadequate; Section 871.26 mandates Plaintiff produce the documents. Moreover, the absence of prejudice does not, by itself, demonstrate Plaintiff acted with good cause.

Accordingly,

the request for sanctions in the amount of \$1,500.00 is GRANTED, payable by plaintiff's counsel within 30 days.